

ASCII MASTER FLOW – PANEL 1/12: Santhanam trajectory and the CVC-CBI-DSPE legal identity map

ROOT QUESTION

How should vigilance supervision, police investigation and final adjudication be separated?

EVOLUTION

1941 Special Police Establishment -> DSPE Act, 1946

-> CBI resolution, 1 April 1963

-> CVC resolution, 1964 after Santhanam Committee

-> Vineet Narain v. Union of India (1997) safeguards -> CVC Act, 2003.

LEGAL IDENTITY

CVC -> statutory commission under CVC Act.

CBI -> executive-created organisation.

DSPE -> statutory police establishment supplying core investigative powers.

LIMIT

common anti-corruption purpose does not merge advice, police power, prosecution and judgment.

ASCII MASTER FLOW – PANEL 2/12: CVC composition, appointment and tenure

COMPOSITION

Central Vigilance Commissioner as Chairperson
+ not more than two Vigilance Commissioners.

APPOINTMENT

President by warrant after committee recommendation:
Prime Minister + Union Home Minister + Lok Sabha Opposition Leader/substitute.

QUALIFICATION

experience in vigilance, policy, administration, police administration,
finance including insurance and banking, law or investigations.

ASCII MASTER FLOW – PANEL 3/12: CVC removal, service safeguards and legal limits

TERM

four years or age 65, whichever earlier; statutory post-tenure restrictions apply.

REMOVAL

proved misbehaviour or incapacity -> President after Supreme Court inquiry.

Direct statutory grounds cover insolvency, moral-turpitude conviction, outside paid employment, infirmity and prejudicial interest.

LIMIT

secure removal does not convert advice into binding adjudication.

ASCII MASTER FLOW – PANEL 4/12: CVC section 8 vigilance and CBI supervision

CVC FUNCTIONS

superintend DSPE investigation of specified Prevention of Corruption Act matters
| issue directions without dictating disposal of a particular case
| review investigation progress and prosecution-sanction applications
| inquire or cause inquiry into covered public-servant complaints
| advise Central Government and covered organisations
| exercise vigilance-administration superintendence.

CVO CHAIN

prevention -> surveillance and complaint scrutiny -> departmental inquiry
-> CVC advice where applicable -> disciplinary authority reasoned decision.

ASCII MASTER FLOW – PANEL 5/12: CVO network, advice and prosecution-sanction monitoring

PROSECUTION SANCTION

section 19 PC Act concerns prosecution stage;
section 17A prior approval concerns specified inquiry/investigation decisions.

LIMIT

CVC is not a police station, trial court or universal controller of every CBI case.

ASCII MASTER FLOW – PANEL 6/12: CBI organisation, DSPE powers and mandate

CBI ORGANISATION

investigation and anti-corruption | economic offences | special crimes
| policy, administration, forensics and international cooperation.

DSPE ACT

section 2 -> Union Territory police-establishment baseline.

section 3 -> Central notification specifies offence classes.

section 5 -> Central extension of powers to State areas.

section 6 -> State consent for ordinary exercise in State area.

POLICE POWER

FIR or regular case -> search, seizure, arrest and examination under law

-> evidence assessment -> closure report or charge sheet -> court.

BOUNDARY

organisational mandate does not override notified offences, territory,
criminal procedure, special statutes, consent or court directions.

ASCII MASTER FLOW – PANEL 7/12: CBI superintendence and investigative judgment

SUPERINTENDENCE

CVC for DSPE investigation of specified corruption offences.

Central Government for other DSPE matters.

ADMINISTRATION

Director controls day-to-day administration and investigative judgment,
subject to statute, law and lawful oversight.

DIRECTOR APPOINTMENT

Central Government appoints on committee recommendation:

Prime Minister + Lok Sabha Opposition Leader/substitute + CJI or nominee.

ASCII MASTER FLOW – PANEL 8/12: CBI Director appointment, tenure and transfer safeguards

TENURE

minimum two years under DSPE Act.

Current law permits conditional one-year extensions,
with recorded public-interest reasons, up to aggregate five years.

TRANSFER

statutory committee safeguard applies.

TRAP

two-year floor != automatic five-year term and superintendence != case-outcome command.

ASCII MASTER FLOW – PANEL 9/12: State consent and constitutional-court directions

ORDINARY STATE-AREA ROUTE

section 5 extension + section 6 general or case-specific State consent.
Withdrawal of general consent operates prospectively for new ordinary entries.

Kazi Lhendup Dorji v. CBI (1994)

later withdrawal did not terminate investigations validly begun while consent operated.

State of West Bengal v. Committee for Protection of Democratic Rights (2010)

High Court under Article 226 and Supreme Court under Article 32

may direct CBI investigation without State consent, exceptionally and cautiously.

Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020)

fact-specific consent result; no universal rule that later consent always cures defect.

State of West Bengal v. Union of India (2024)

preliminary maintainability objection rejected; cited judgment did not decide consent merits.

FEDERAL VERDICT

qualified State control in ordinary cases + exceptional rights-protecting judicial review.

ASCII MASTER FLOW – PANEL 10/12: Lokpal interface, investigation lifecycle and procedural safeguards

LOKPAL ROUTE

complaint scrutiny -> preliminary inquiry or investigation under Lokpal Act
-> CVC/CBI or statutory wings as assigned -> reports and directions within the Act.

INVESTIGATION LIFECYCLE

source information/complaint -> jurisdiction and approval screen
-> preliminary verification where law permits -> FIR/regular case
-> evidence collection -> sanction question -> final police report
-> prosecution -> trial -> judgment.

CBI v. Thommandru Hannah Vijayalakshmi (2021)

preliminary inquiry is not mandatory before every corruption FIR;
criminal-procedure and corruption-law requirements control.

SAFEGUARDS

lawful approval | reasons | search and arrest standards
| disclosure and fair trial | judicial review | presumption of innocence.

LIMIT

FIR, charge sheet, vigilance advice and sanction are not findings of guilt.

ASCII MASTER FLOW – PANEL 11/12: CVC, CBI, Lokpal, NIA and State Police: power-type comparison

CVC

statutory vigilance supervision and advice | no general police power.

CBI / DSPE

executive organisation + statutory police powers | consent and offence controls.

LOKPAL

statutory ombudsman and complaint-routing authority for covered public functionaries.

NIA

statutory national-security investigation under NIA Act and scheduled-offence framework.

STATE POLICE / ACB

State police power and territorial responsibility under ordinary criminal law.

DEPARTMENTAL CVO

internal prevention, scrutiny and disciplinary-vigilance coordination.

COURT

authorises, reviews, tries and finally determines guilt.

TRAP

administrative placement, vigilance supervision and police command are different relationships.

ASCII MASTER FLOW – PANEL 12/12: Cases, caged-parrot criticism and reform synthesis

Vinod Narain v. Union of India (1997)

institutional safeguards, Director tenure and statutory CVC trajectory.

Alok Kumar Verma v. Union of India (2019)

statutory committee safeguard constrained removal of Director's functions.

Dr Jaya Thakur v. Union of India (2023)

current extension framework upheld; extension remains conditional, not automatic.

"CAGED PARROT"

judicial criticism of perceived executive influence in 2013;

not a statutory status, doctrine or licence for judicial administration of every case.

REFORM

dedicated law with federal safeguards + predictable consent protocol

-> professional cadre and budget -> transparent case allocation

-> timely sanctions -> parliamentary system review + judicial accountability.

PYQ SPINE

2021 State consent and federalism | 2026 controlled institutional matching.

VERDICT

operational autonomy must be paired with legality, federal restraint and answerable coercive power.